

Notifications under Motor Vehicles Act and Rules

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Union of India - Act

Notifications under Motor Vehicles Act and Rules

UNION OF INDIA

India

Notifications under Motor Vehicles Act and Rules

Rule NOTIFICATIONS-UNDER-MOTOR-VEHICLES-ACT-AND-RULES of 1996

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Notifications under Motor Vehicles Act and Rules

(Issued by the Central Government)

200.

Notifications

Notifications Under Section 58(3)

Certain types of tractor-trailers Registration approved

S.O. 777(E), dated 8-11-1996 .In exercise of the powers conferred by sub-section (3) of section 58 of the Motor Vehicles Act, 1988 (

59 of 1988

), the Central Government hereby accords approval to the registration of following Tractor-Trailer, the maximum safe laden weight and dimensions of the same mentioned in the schedule appended hereto:

Schedule

1.

Type of Tractor-Trailer

MAN make tractor combination of 19 Tons capacity

2.

Owned by

Rashtriya Pariyojana Nirman Nigam Ltd., New Delhi

3.

Description of Tractor-Trailer (1 in number)

Tractor with loading Crane:

(i)

Chassis No.

528-0555-0555

(ii)

Engine No.

331/4082 054/2110

(iii)

DINHPCC

240/11330 CM

(iv)

Year of Manufacture

1982

Semi Trailer:

(i)

Chassis No.

026748

(ii)

Works No.

465865

Overall approximate dimensions of the Tractor-Trailer Assembly are as follows:

(i)

Maximum Length

16.61 metres .

(ii)

Maximum Width

2.550 metres .

(iii)

Height of Trailer Bed from ground

1.360 metres

.

(iv)

Maximum height of cabin to tractor

3.330 metres

.

(v)

No. of tyres size 12x20

(8 with Trailer + 6 with Tractor = 14 Nos. only).

(vi)

permissible g.v.w .

19000 kg.

(vii)

permissible Axleload front

6500 kg.

(viii)

Permissible Axle load rear

13000 kg.

2.

The above relaxation is subject to the conditions that

(i)

Since the vehicle is very old and has not been used for the last 7 years or so, its roadworthiness would have to be ensured by the State Transport Authorities before its registration.

(ii)

The movement of the vehicle shall be effected only on the routes permitted by Public Works Department of the State Government.

(iii)

The Public Works Department is not responsible for any damage that may be sustained either by the said combination or their contents consequent during the transit.

(iv)

All the necessary warning signals such as red flags in the day time and reflectorised red lights in the night times shall be provided to indicate the extremities of the vehicle clearly.

(v)

The said vehicle shall be moved without any hindrance to the normal flow of traffic.

(vi)

The grant of this permission to the vehicle does not prevent the Local Offices of Highways and Rural Works Department from regulating or stopping the movement of these vehicles depending upon the exigencies of the situations and having regard to the condition of the road and road structures.

(vii)

The length, width, height, maximum safe axle load and safe laden weight shall not be enhanced beyond the limits indicated.

(viii)

The operation of the tractor-trailer shall be done only sparingly,

(ix)

Coupling of trailers along the width of the road shall not be permitted.

(x)

It should be ensured that no other vehicle is on the road structure, when this vehicle is moved.

Notifications under Section 58(3)

Certain types of trailers Registration approved

S.O. 396(E), dated 28-5-1999. In exercise of the powers conferred by sub-section (3) of section 58 of the Motor Vehicles Act, 1988 (

59 of 1988

), the Central Government hereby accords approval to the registration of following trailers with maximum safe laden weight and dimensions as mentioned in the Schedule appended hereto:

Schedule 2

1.

Type of Trailers

Independent Trailers

2.

Owned by

Kataria Carriers, Kanpur

3.

Description of Trailers

(2 in Nos.)

Chasis No.

No. of Axles

No., Description, Size of Tyres

Measurements (Length x Width)

Unladen Weight (in Kgs.)

Maximum per Axle Load (in kgs.)

Weight Gross/Kgs.

(1)

(2)

(3)

(4)

(5)

(6)

(7)

TRT/MT-6/016

6

7.50 x 20,12 Ply 8 in each axle (8 x 6=48 tyres)

12612mm x 3000mm

27,000

18,000

1,08,000

TRT/MT-4/012

4

7.50 x 20,12 ply 8 in each axle (8 x 4=32 tyres)

9512mm x 3000mm

17,800

18,000

72,000

4.

The above relaxation is subject to the condition that

(a)

The operations of the trailers shall be done only sparingly.

(b)

Load restrictions on various roads stipulated by the Public Works Department/Local Authorities will be observed and permission of such authorities will be obtained every time the vehicle is put on the roads.

(c)

The loaded vehicles will not be allowed to pass over the bridges on the roads in this State and applicants will have to make their own arrangements to cross the rivers/nallas as directed by the Public Works Department.

(d)

The vehicles should display all danger flags and lights, preferably the vehicles should be proceeded and followed by a vehicle displaying prominently that a heavy load is passing.

(e)

Coupling of the trailers along with the width of the road shall not be permitted.

(f)

The trailers shall be registered individually and not as a combination.

(g)

The maximum speed of the trailers for movement on the road shall not exceed 10km/hour.

5.

The trailer shall be registered only subject to fulfilment of conditions laid down under rule 47 of the Central Motor Vehicles Rules, 1989 and production of sale documents (invoice, proof of payment of all taxes).

Notifications under Section 58(3)

Certain types of trailers Registration approved

S.O. 966(E), dated 10-11-1998 .In exercise of the powers conferred by sub-section (3) of section 58 of the Motor Vehicles Act, 1988 (

59 of 1988

), the Central Government hereby accords approval to the registration of following Trailers, with maximum safe laden weight and dimensions as mentioned in the Schedule appended hereto:

Schedule 3

1.

Type of Trailers

Independent Trailers

2.

Owned by

Kataria Carriers, Kanpur

3.

Description of Trailers

(2 in Nos.)

Chasis No.

No. of Axles

No., Description, Size of Tyres

Measurements (Length x Width)

Unladen Weight (in Kgs.)

Maximum per Axle Load (in kgs.)

Weight Gross/Kgs.

(1)

(2)

(3)

(4)

(5)

(6)

(7)

TRT/MT-6/016

6

7.50x20, 12 Ply 8 in each axle (8x6=48 tyres)

12612mm x 3000mm

27,000

18,000

1,08,000

TRT/MT-4/012

4

7.50 x 20, 12 ply 8 in each axle (8x4=32 tyres)

9512mm x 3000mm

17,800

18,000

72,000

2. The above relaxation is subject to the condition that

(a)

The operations of the trailers shall be done only sparingly.

(b)

Load restrictions on various roads stipulated by the Public Works Department/Local Authorities will be observed and permission of such authorities will be obtained every time the vehicle is put on the roads where restrictions have been

specified. Each of such movement will be closely monitored by the road authorities.

(c)

The loaded vehicles will not be allowed to pass over the bridges where any load restrictions below the gross weight of the trailers have been prescribed by the local authorities and the owners will have to make their own arrangements to cross the rivers/nallas as directed by the Public Works Department.

(d)

The vehicle should display all danger flags and lights, preferably the vehicle should be preceded and followed by a vehicle displaying prominently that a heavy load is passing.

(e)

Coupling of the trailers along with the width of the road shall not be permitted.

Notifications under Section 60(1)

Central Government Defence Vehicles Registering Officers

S.O. 424(E), dated 9-6-1989 .In exercise of the powers conferred by sub-section (1) of section 60 of the Motor Vehicles Act, 1988 (

59 of 1988

), the Central Government hereby specifies the following officers as the officers who may register motor vehicles referred to in the said sub-section, namely:

(i)

The Officers Commanding of Units of the Army of and above the rank of Major:

(ii)

The Officers Commanding of Units of the Navy of and above the rank of Lieutenant Commander:

(iii)

The Officers Commanding of Units of the Air Force of and above the rank of Squadron Leader.

2. The Authorities specified above may grant certificate of fitness in respect of transport vehicles.

3.

This notification shall come into force on the first day of July, 1989.

Notifications under Section 66(3)(g)

Transport vehicles used by manufacturers, etc. Exempt from permit

S.O. 414(E), dated 8-6-1989 .In exercise of the powers conferred by clause (g) of sub-section (3) of section 66 of the Motor Vehicles Act, 1988 (59 of 1988), and in supersession of the notification of the Government of India in the Ministry of Shipping and Transport No. S.O. 1502, dated the 15th May, 1973, the Central Government hereby specifies that the provisions of sub-section (1) of the said section shall not apply to any transport vehicle used by a person who manufactures or deals in any motor vehicle or builds bodies for attachment to chassis solely for the purposes of advertisement, demonstration, road test, endurance test, test ground or export subject to the conditions that the driver of the transport vehicle shall

(a)

carry a letter from the manufacturer or dealer indicating the purpose for which the vehicle is being used and the place to which it is proceeding;

(b)

carry the trade certificate issued under Chapter III of the Central Motor Vehicles Rules, 1989; and

(c)

not carry any goods of commercial nature other than the tools and accessories or any passengers other than the driver, one mechanic, one engineer and two attendants and every such driver, mechanic, engineer or attendant shall carry identity cards or letter of identity issued by the manufacturer or the dealer, but may carry instructions and test equipments, etc., for test purposes.

2. This notification shall come into force on the first day of July, 1989.

*Substituted by S.O. 944(E), dated 13-12-1993 (w.e.f . 13-12-1993).

Notifications under Section 66(3)(j)

Transport vehicles purchased in one State proceeding to another without carrying goods Exempt from permit

S.O. 419(E), dated 8-6-1989 .In exercise of the powers conferred by clause (j) of sub-section (3) of section 66 of the Motor Vehicles Act, 1988 (59 of 1988), the Central Government hereby specifies that the provisions of sub-section (1) of

the said section shall not apply to any transport vehicle purchased in one State and proceeding to a place situated in that State or in any other State, without carrying any passenger or goods subject to the conditions that the driver of every such vehicle shall carry

(a)

the certificate of registration, permanent or temporary;

(b)

the certificate of fitness;

(c)

a certificate of insurance or a cover note; and

(d)

a letter from the seller of such vehicle stating the name and address of the person to whom it has been sold and the place to which it is proceeding.

2. This notification shall come into force to the first day of July, 1989.

Notifications under Section 66(3)(l)

Transport vehicles used for certain purpose Exempt from permit

S.O. No. 418(E), dated 8-6-1989 .In exercise of the powers conferred by clause (l) of sub-section (3) of section 66 of the Motor Vehicles Act, 1988 (59 of 1988), and in supersession of the notification of the Government of India in the Ministry of Shipping and Transport No. S.O. 1500, dated the 15th May, 1973, the Central Government hereby specifies that the provisions of sub-section (1) of the said section shall not apply to a transport vehicle used for the purpose of

(a)

sending as a replacement for a disabled transport vehicle under intimation to the State Transport Authority in whose jurisdiction the vehicle is to be used;

(b)

sending to another place of business by the owner on transfer of his business to such place:

(c)

using a goods carriage vehicle owned by a Central Government Undertaking or a State Government Undertaking as an exhibition van for demonstrating the goods manufactured by it at different places of the country for promotion of its business activities.

2. This notification shall come into force on the first day of July, 1989.

Clause 66(3)(l) has since been substituted, this notification is no longer relevant to the present clause. This notification may now be treated as falling under section 66(3)(n) Ed.

Notifications under Section 66(3)(n)

Transport vehicles carrying relief supplies in natural calamities Exempt from permit

S.O. 417(E), dated 8-6-1989 .In exercise of the powers conferred by clause (n) of sub-section (3) of section 66 of the Motor Vehicles Act, 1988 (59 of 1988), the Central Government hereby specifies that the provisions of sub-section (1) of the said section shall not apply to a transport vehicle used for carriage of food grains and other relief supplies for the persons affected by accident, flood, earthquake, natural calamities or unforeseen circumstances and carriage of persons and their luggage.

This order shall come into force on the first day of July, 1989.

Notifications under Section 71(3)(a)

Directions to limit state carriage permits

S.O. 701(E) .In pursuance of clause (a) of sub-section (3) of section 71 of the Motor Vehicles Act, 1988 (59 of 1988

), the Central Government hereby directs the State Government specified in column (1) of the Table below, to direct the concerned State Transport Authorities and Regional Transport Authorities to limit by notification in the official gazette, the number of stage carriages operating as city services in the places specified in the corresponding entry in column (2) of the said Table.

Table

State

Town

(1)

(2)

Kerala

1.Calicut

2.Cochin

Jammu and Kashmir

1.Srinagar

Uttar Pradesh

1.Lucknow

2.Kanpur

3.Varanasi

4.Agra

5.Allahabad

6.Meerut

Madhya Pradesh

1.Indore

2.Jabalpur

3.Bhopal

4.Gwalior

Notifications under Section 74(3)(a)

Direction to limit contract carriagepermits

S.O. 700(E) .In pursuance of clause (a) ofsub-section (3) of section 74 of the Motor Vehicles Act, 1988 (59 of 1988

), the Central Government hereby directs the State Governments specified in column (1)of the Table below to direct the concerned State Transport Authorities and the Regional Transport Authorities to limit, by notification in the officialgazette, the number of contract carriages, other than those covered by permitunder section 88(9) of the Act, generally or of any specified type as may befixed and specified in the notification operating in city routes in placespecified in the corresponding entry in column (2) of the said Table.

Table

State

Towns

(1)

(2)

Andhra Pradesh

1.Hyderabad

2.Visakhapatnam

Jammu and Kashmir

1.Srinagar

Karnataka

1.Bangalore

2.Hubli-Dharwar

Kerala

1.Trivandrum

2.Calicut

3.Cochin

Maharashtra

1.Bombay

2.Pune

3.Nagpur

4.Solapur

Madhya Pradesh

1.Indore

2.Jabalpur
3.Bhopal
4.Gwalior
West Bengal
1.Calcutta
Rajasthan
1.Jaipur
2.Jodhpur

Notifications under Section 88(1)(a), Third Proviso

Certificate Vehicles used for Defence purposes when used in another State

S.O. 426(E), dated 9-6-1989 .In exercise of the powers conferred by sub-clause (a) of the third proviso to sub-section (1) of section 88 of the Motor Vehicles Act, 1988 (

59 of 1988

), and in supersession of the notification of the Government of India in the Ministry of Shipping and Transport No. S.O. 16(E), dated the 17th January, 1983, the Central Government hereby specifies, the form of certificate referred to in the said clause, issued by the Regional Transport Authority which granted the permit.

Form of Certificate

This is to certify that Motor Vehicle No. being used for the purpose of defence for the period with effect from to This vehicle is exempted from the provisions of section 66(1) of the Motor Vehicles Act, 1988.

Seal Regional Transport Officer

Place Region Date State

2. This notification shall come into force on the first day of July, 1989.

Notifications under Section 88(8)

Special distinguishing mark to be displayed on public service vehicles covered by special permits

S.O. 428(E), dated 9-6-1989 .In pursuance of sub-section (8) of section 88 of the Motor Vehicles Act, 1988 (59 of 1988

), and in supersession of the notification of the Government of India in the Ministry of Shipping Transport No. S.O. 1008, dated the 9th August, 1971, the Central Government hereby specifies that the form of special distinguishing mark to be assigned to public service vehicles covered by special permits referred to the said sub-section, shall be as indicated below and that the said distinguishing mark shall be displayed prominently on the wind-screen of the said vehicle.

Special distinguishing mark

Contract

Special Permit No.

Issued under Section 88(8)

of Motor Vehicles Act, 1988

Issued by Valid upto Note: This should be displayed prominently on the wind-screen of the vehicle

Carriage

Dimensions

Border 6 mm

Overall Diameter 100 mm

Colour

Centre-Light Blue

Border-Red

2. This notification shall come in to force on the first day of July, 1989.

Notifications under Section 88(11)(ii)

Drivers of tourist vehicles Qualifications of

S.O. 415(E), dated 8-6-1989 .In exercise of the powers conferred by clause (ii) of sub-section (11) of section 88 of the Motor Vehicles Act, 1988 (59 of 1988), and in supersession of the notification of the Government of India in the Ministry of

Shipping and Transport No. S.O. 1771, dated the 11th June, 1973, the Central Government hereby specifies for the purposes of said clause, the following qualifications and conditions, namely:

Qualifications .A driver of a tourist vehicle shall possess the following qualifications, namely:

- (a)
a drivers licence with at least two years experience;
- (b)
elementary knowledge of the mechanism and maintenance of the tourist vehicle he drives;
- (c)
knowledge of the topography of the route or area or region in which the tourist vehicle is proposed to be used;
- (d)
working knowledge of English and Hindi or any language of the region where he works.

Note :Qualification (d) shall not apply in cases where the driver is accompanied by a conductor who has the said qualification.

Conditions .(1) A driver of tourist vehicle shall satisfy the following conditions, namely:

- (a)
in summer months he shall wear a white uniform of the following descriptions, namely:
 - (i)
loose trousers;
 - (ii)
bush shirt or coat with two pockets and letter T sewn on the left hand pocket of the shirt or coat in red thread.

- (b)
in winter months he shall wear a blue or grey uniforms of the following descriptions, namely:

- (i)
loose trousers;
- (ii)
buttoned up coat with two pockets and the letter T sewn on the left hand pocket in red thread or open coat with two pockets and the letter T sewn in left hand pocket in read thread, white full sleeved shirt and blue tie.

2. This notification shall come into force on the first day of July, 1989.

Notifications under Sections 109(3) and 110(1)(n)

4.
-Wheeler petrol-driven vehicles to be fitted with a noble-metal based catalytic converter

S.O. 454(E), dated 25-5-1989 .In exercise of the powers conferred by sub-section (3) of section 109 and clause (n) of sub-section (1) of section 110 of the Motor Vehicles Act, 1988 (59 of 1988

), and in supersession of the notification of the Government of India in the Ministry of Surface Transport, No. S.O. 138(E), dated 19-2-1988, the Central Government hereby stipulates that the 4-wheeler petrol driven vehicles, as are registered on the first sale in the following cities on or after the 1st of August, 1998 shall be fitted by the manufacturers thereof with anoble-metal based catalytic converter of at least anoxidative type and with an OEM certification, namely:

States/UTs

Cities

Andhra Pradesh

Hyderabad and Visakhapatnam

Arunachal Pradesh

Itanagar

Assam

Dispur

Bihar

Patna

, Jamshedpur and Ranchi

Chandigarh

Chandigarh

Goa
Panjim
Gujarat
Gandhinagar
, Surat and Baroda
Haryana
Gurgaon
, Hissar and Ambala
Himachal Pradesh
Shimla
Jammu and Kashmir
Jammu and Srinagar
Karnataka
Bangalore
Kerala
Trivandrum
, Cochin and Calicut
Madhya Pradesh
Bhopal and Indore
Maharashtra
Pune and Nagpur
Manipur
Imphal
Meghalaya
Shillong
Mizoram
Aizwal
Nagaland
Kohima
Orissa
Bhubaneshwar
Punjab
Amritsar
, Ludhiana and Jalandhar
Rajasthan
Jaipur
, Jodhpur and Udaipur
Sikkam
Gangtok
Tripura
Agartala
Uttar Pradesh
Lucknow
, Allahabad and Kanpur
Andaman and Nicobar
Port Blair
Dadra and Nagar Haveli
Silvassa
Pondicherry
Pondicherry
Notifications under Section 110(3)

Tractors exempted from some constructional requirements

S.O. 680(E), dated 30-8-1989 .In exercise of the powers conferred by sub-section (3) of section 110 of the Motor Vehicles Act, 1988 (

59 of 1988

), the Central Government hereby exempts tractors from the requirements of the provisions of clauses (c), (d), (e), (f), (g), (h), (i), (j), (k) and (m) of sub-section (1) of the said section

Notifications under Section 185, Explanation

Specification of certain drugs deemed to render driver incapable of exercising control over vehicle

S.O. 441(E), dated 12-6-1989 .In pursuance of the Explanation of section 185 of the Motor Vehicles Act, 1988 (59 of 1988), and in supersession of the notification of the Government of India in the Ministry of Shipping and Transport No.

S.O. 1929, dated the 17th June, 1978, the Central Government hereby specifies the following drugs which shall be deemed to render a person incapable of exercising proper control over a motor vehicle, namely:

1.

Central Nervous System Depressant:

(a)

Cannabis

(b)

Cocaine

2. Hypnotics Sedatives:

(a)

Allobarbitone

(b)

Phenobarbital

(c)

Secobarbital

(d)

Cyclobarbitone

(e)

Barbitone

(f)

Methaqualone

(g)

Chloralhydrate

3. Narcotic Analgesics:

(a)

Morphine

(b)

Pethidine

4. Psychotropic drugs:

(a)

Lysergic Acid Diethylamide (L.S.D.)

5. Stimulants:

(a)

Amphetamine

(b)

Methylphenidate Hydrochloride

6.

Tranquilizers:

(a)

Diazepam

(b)

Chloridiarepoxide

(c)

Nitrazepam

2. This notification shall come into force on the first day of July, 1989.

Under Section 203, Explanation

Breath analysers to indicate presence of alcohol in blood

S.O. 442(E), dated 12-6-1989. In exercise of the powers conferred by the Explanation to section 203 of the Motor Vehicles Act, 1988 (59 of 1988), and in supersession of the notification of the Government of India in the Ministry of Surface Transport No. S.O. 3796, dated the 23rd November, 1977, the Central Government hereby approves the following types of devices (hereinafter referred to as the breath analyser), for the purpose of obtaining an indication of the presence of alcohol in a person's blood by means of a test carried out, on one or more specimens of breath provided by that person, for the purpose of breath tests, namely:

(1)

Device I. The breath analyser shall comprise the following, namely:

(a)

An indicator tube containing material which would undergo change of colour when in contact with alcohol vapours on breathing of an alcoholic subject into the tube:

Provided that the shelf-life of the indicator tube shall not be less than one year, so that the performance of the breath analyser stored for this period shall in no way be different from that of a freshly made indicator tube;

(b)

a mouth-piece made of non-toxic plastic material;

(c)

an inflatable bag of volume of 1 litre, when fully inflated, made of polythene and attached with the mouth-piece at the opening.

(2)

Device II. The breath analyser shall comprise the following, namely:

(a)

An indicator test type containing material which would undergo change of colour when in contact with alcohol vapours on dealing with an alcoholic subject into the tube;

(b)

a mouth-piece;

(c)

a breath bag with a colour neck and capacity; or

(3)

Device III. The breath analyser shall comprise the following, namely:

(a)

An indicator tube fused at both ends and containing a yellow reagent which would undergo change of colour when in contact with alcohol vapours on breathing of an alcoholic subject into the tube:

Provided that the shelf-life of the indicator tube shall not be less than three years, so that the performance of the breath analyser stored for this period shall in no way be different from that of a freshly made indicator tube;

(b)

a mouth-piece;

(c)

an inflatable bag and attached with a mouth-piece at the opening and further identified by a broad weight band, or

(4)

Device IV. The breath analyser shall comprise the following, namely:

Any evidential digital instrument when oxidized with the breath containing alcohol an electric signal which is amplified and displayed as blood alcohol concentration.

2. This notification shall come into force on the first day of July, 1989.

Notifications under Section 213(4)

Minimum qualifications for Inspector and Assistant Inspector of Motor Vehicles

S.O. 443(E), dated 12-6-1989 .In exercise of the powers conferred by sub-section 213 of the Motor Vehicles Act, 1988 (59 of 1988

), the Central Government hereby prescribes that the minimum qualification for the class of officers consisting of the category of Inspector of Motor Vehicles or Assistant Inspector of Motor Vehicles (by whatever names called) shall be as under:

Qualification :

(1)

Minimum general educational qualification of a pass in X standard; and

(2)

a diploma in Automobile Engineering (3 years course) or a diploma in Mechanical Engineering awarded by the State Board of Technical Education (3 years course); and

(3)

working experience of at least one year in a reputed automobile workshop which undertakes repairs of both light motor vehicles, heavy goods vehicles and heavy passenger motor vehicles fitted with petrol and diesel engine; and

(4)

must hold a driving licence authorising him to drive motor cycle, heavy goods vehicles and heavy passenger motor vehicles.

2. Nothing contained in the notification shall apply to an officer appointed to such post before the first day of July, 1989 and to an officer appointed to discharge function of a non-technical nature.

3. This notification shall come into force on the first day of July, 1989.

Notifications under Section 110(3) and Central Rule 93(4) and (6)

Overall dimensions of drilling machines specifically designed

S.O. 361(E), dated 30-5-1991 .Whereas the Central Government is of the opinion that for the purpose of registration under Chapter IV of the Motor Vehicles Act, 1988 (59 of 1988

), (hereinafter referred to as the said Act), dimensions, in excess of the dimensions relating to height and overhang prescribed in sub-rules (4) and (6) respectively of rule 93 of the Motor Vehicles Rules, 1989 (hereinafter referred to as the said rules), should be permitted for the drilling machine specially designed and constructed for the purpose of drilling water, as described in the schedule below (hereinafter referred to as the said class of vehicle).

Now, therefore, in exercise of the powers conferred by clause (a) of sub-section (3) of section 110 of the said Act, the Central Government hereby exempts the said class of vehicles from the provisions of sub-rules (4) and (6) of rule 93 of the said Rules, subject to the following conditions, namely:

(i)

overall height of the vehicle shall not exceed 15 feet.

(ii)

the overhang from projection of the drilling mast protruding out of the vehicle either on front or rear shall not exceed eleven feet and should have red light attached at the extreme ends of overhang front projection.

(iii)

speed of the vehicle shall not exceed 20 km per hour or the lower speed limit as may be prescribed by the concerned State Government in whose jurisdiction the vehicle is moving;

(iv)

red flags will be put on all the four corners of vehicle both at the front and rear, indicating the full width of vehicle, so as to give reasonable caution to the vehicular traffic coming from behind and front.

(v)

the vehicle shall move with the Drilling Machine attached with a compressor only during the day time.

(vi)

the operation of the vehicle would be subject to payment of tax, if any, leviable under the provisions of the Motor Vehicles Taxation Act, or any other Act of the concerned State.

(vii)

The owner of the vehicle, shall, before moving the vehicle and the drilling machine boring rig, seek prior permission of the concerned Governments of the State through which the vehicle would move for moving the vehicle and the State

Government would accord permission, subject to such conditions imposed by them keeping in view the local conditions of roads, bridges, culverts and volume of movement of vehicular traffic etc.

Schedule 4

Type of vehicle

Drilling Machine/Boring Rig Mounted on Truck.

Notifications under Rule 124 of the Central Motor Vehicles Rules, 1989

Parts, components Standards to be followed by manufacturers

S.O. 873(E), dated 15-12-1997. In exercise of the powers conferred by rule 124 of the Central Motor Vehicles Rules, 1989 and in supersession of the notification of the Government of India in the Ministry of Surface Transport (Road Transport Wing) S.O. No. 201(E), dated 26th March, 1993, the Central Government hereby specifies the parts, components or assemblies and the relevant standards mentioned in the Table below, which every manufacturer shall use in the manufacture of the vehicle.

2. This notification shall come into force after three months from the date of publication in the Official Gazette.

Sl. No.

Particulars

(1)

(2)

1. [Automobile Lamps used in motor vehicles including construction equipment vehicles] for the following applications:

(i)

Head Lights Main and Dip

(ii)

Parking Light

(iii)

Direction Indicator Lamp

(iv)

Tail Lamp

(v)

Reversing Lamp

(vi)

Stop Lamp

(vii)

Rear Registration Mark Illuminating Lamp

(viii)

Top Light,

shall be in accordance with clauses 1, 2, 3, 4.1.2, 4.1.4, 4.1.5, 4.1.6., 4.2, 4.4, 5, 6, 7, and 8 of IS 1606 : 1979

2. Hydraulic Brake Hose wherever used in motor vehicles shall be in accordance with [IS : 7079 : 1995]

[Substituted for [IS : 7079 : 1979] by S.O. 1228(E), dated 18.12.2001 (w.e.f. 1.1.2003).]

3. Hydraulic Brake Fluid wherever used in the motor vehicles shall be in accordance with IS 8654: 1986.

4. T signs, where used on Trailers shall be in accordance with IS 9942 : 1981.

5. The steering impact requirements shall be as per IS : 11939: 1996. This requirement shall be applicable to vehicles specified in IS : 11939 : 1966.

6. All passenger cars shall comply with the requirement of side door impact as laid in IS 12009: 1995.

7.

[Fuel tanks of motor vehicles having more than three wheels shall comply with the requirement laid down in IS : 12056 : 1987 :

Provided that plastic fuel tanks of motor vehicles having more than three wheels shall be in accordance with AIS-033/2001.]

[Sl.Nos. 5, 7 and 18 substituted by S.O. 1228(E), dated 18.12.2001 (w.e.f. 1.1.2003).]

8.

Wheel rims fitted in all motor vehicles shall comply with the requirement of IS 9438 : 1980 or IS 9436 : 1980 as

applicable.

9.

Control Cables fitted on motorcycles of engine capacity less than 50 cc shall comply with the requirement of clause 4 of IS 10791 : 1983.

10.

Pneumatic couplings used for connection of brake system between the towing vehicle and the trailer, wherever used, shall comply with the requirement of IS 10792 : 1984.

11.

The external projection on all motor vehicles other than three wheeler of engine capacity less than 500 cc and motor cycles shall be in accordance with IS 3942 : 1994.

12.

The retention and release of the windows fitted on buses shall be in accordance with IS 13944 : 1994

13.

Wheel guards (mud-guards) used on passenger cars shall be in accordance with IS 13943 : 1994.

14.

Wheel nuts, wheel discs and hubcaps of passenger cars, light and heavy commercial vehicles shall be in accordance with IS 13941 : 1994.

15.

The accelerator control system fitted on all motor vehicles other than three-wheelers of engine capacity less than 500 cc motor cycles and tractors shall be in accordance with IS 14283 : 1995.

16.

The door locks and the door retention components fitted on cars and light passenger and commercial vehicles shall be in accordance with IS 14225 : 1995.

17.

The hood latch system fitted on passenger cars and commercial vehicles shall be in accordance with IS 14226 : 1995.

18.

[The Tell-Tale symbols and controls on two-wheelers and three-wheelers vehicles shall be in accordance with IS : 14413 : 1996.]

[Sl. Nos. 5, 7 and 18 substituted by S.O. 1228(E), dated 18.12.2001 (w.e.f. 1.1.2003).]

19.

Tell-Tale Symbols and controls for motor vehicles other than 3 wheeled vehicles with handle bar, 2 wheeled vehicles and tractors shall be in accordance with Safety Standard No. 12.1.

[devices for non-transport and transport vehicles]

[Sl. No. 20 substituted by S.O. 1228(E), Cl. (vi), dated 18.12.2001, see footnote no. 8, infra.] [20. Installation requirements for lighting and light signalling <A TITLE =]

having more than three wheels, and their trailers and semi-trailers, shall be in accordance with AIS008/2001, except the requirement for vertical orientation of dipped beam headlamp as per clause 6.2.6.1 of AIS008/2001:

Provided that the performance requirements of the lighting, light signalling and indicating systems shall be in accordance with Safety Standard 15.1:

Provided further that lighting, light signalling and indicating systems of construction equipment vehicles shall be in accordance with Safety Standard No. 15.1 except the requirement of self-cancellation of turn signal indication:

Provided also that such compliance of Safety Standard No. 15.1 shall not be applicable to agricultural tractors and other special purpose motor vehicles:]

[Provided also that in the case of the steering impact requirement referred to in clause (iii) and the requirement for installation of lighting and light signalling devices for transport vehicles having more than three wheels and their trailers and semi-trailers, referred to in clause (vi) shall come into force on the 1st May, 2003, and for two and three wheelers and their trailers and semi-trailers, referred to in clause (viii) shall come into force on the 1st March, 2003.]

[Inserted by S.O. 1306(E), dated 11.12.2002.]

21.

[Electromagnetic radiation from all motor vehicles shall be in accordance with AIS004/1999.]

[SL. No. 21 substituted by S.O. 1228(E), dated 18.12.2001 (w.e.f. 1.1.2003).]

22.

Towing devices used on motorvehicles, trailers and transport tractors from 2 tons to 35 tons gross massshall be in accordance with Safety Standard No. 33.1.

23.

[The gradeability of every motor vehicle shall be in accordance with AIS 003/1999.

24.

Installation requirements forlighting and light signalling devices for two andthree wheelers, and their trailers and semi-trailers shall be in accordancewith AIS009/2001.

25.

Fuel tanks for two andthree-wheelers shall be in accordance with IS : 14681-1999 except the requirement for permeability test for plastic fuel tanks.] [[Inserted by S.O. 1228(E), Cl. (viii), dated 18.12.2001.[N.B.- Amendments shall come into force on 1st January, 2003:

Provided that in the case of the requirement for vertical orientation of dipped beam headlamp as per clause 6.2.6.1. of AIS - 0**/2001 referred to in clause (vi) and the permeability test for plastic fuel tanks referred to in clause (viii) shall come into force on the 1st January, 2005.]]

Notifications under Section 8(3)

Registered Medical Practitioners Authorised to issue medical certificates

In exercise of the powers conferred undersub-section (3) of section 8 of the Motor Vehicles Act, 1988 (59 of 1988

), the Transport Commissioner, Delhi hereby appoints all Registered Medical Practitioners residing or practicing in the Union Territory of Delhi and havingdegree in Allopathy , Homoeopathy, Ayurvedic or Unani System of Medicine for issue of Medical Certificates under the Motor Vehicles Act, 1988 and rules made thereunder .

The Registered Medical Practitioners whoare eligible for issuing Medical Certificates as mentioned above shall puttheir name, detailed address, educational qualifications and the registrationnumber alongwith Medical Council, where registered on the medical certificates issued by them and maintain proper record in thisrespect.

The Registered Medical Practitioners whohave been authorised to issue Medical Certificates asmentioned above shall not charge more than Rs . 30for issuing such certificate and this fee is inclusive of the examination ofvision, blood grouping with R.H. Factor (optional) and all other detailsmentioned in Form A appended to the Central Motor Vehicles Rules, 1989.

The Registered Medical Practitioners should have vision testing equipment and he must either have Pathological Laboratory or should get the report from the Pathological Laboratory and thesame report should also be attached to the Medical Certificate.

This notification shall come into forcefrom the 1st April, 1991 .

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Translation